

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:
SUMMONS

-----X
MICHAEL TAYLOR,

Plaintiff,

Plaintiff designates Bronx
County as the place of trial.

-against-

The basis of venue is:
Place of occurrence

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, SGT. LUISA FELIZ SHIELD NO.: 1198
and POLICE OFFICER JAY LARA, SHIELD NO.: 15656,

Plaintiff resides at:
116-11 223rd Street
Queens, NY 11411

Defendants.

-----X

County of Queens

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
September 28, 2018


MICHAEL BRAVERMAN
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff(s)
MICHAEL TAYLOR,
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No. 9161

TO: THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, New York 10007

SGT., SGT. LUISA FELIZ SHIELD NO.: 1198
Bronx Criminal Court
215 E 161st St
Bronx, NY 10451

POLICE OFFICER JAY LARA, TAX ID NO.: 15656
Transit District 3
145 Street and St. Nicholas Avenue, Subway Station
New York, NY 10019

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
MICHAEL TAYLOR,

Plaintiff,

Index No.:
Date Purchased:**VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, SGT. LUISA FELIZ SHIELD NO.: 1198
and POLICE OFFICER JAY LARA, SHIELD NO.: 15656,Defendants.
-----X

MICHAEL TAYLOR, by his attorneys, **GETZ & BRAVERMAN, P.C.**, respectfully
alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

(1) At all times mentioned, Plaintiff **MICHAEL TAYLOR**, is a resident of Bronx
County, City and State of New York.

(2) At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a
municipal corporation duly organized and existing by virtue of the Laws of the State of New
York. (3) Upon information and belief, at all times mentioned, Defendants **THE CITY OF
NEW YORK, NEW YORK CITY POLICE DEPARTMENT, SRGT. LUISA FELIZ
SHIELD NO.: 1198 and POLICE OFFICER JAY LARA, SHIELD NO.: 15656**, were and
are police officers of the Defendant City of New York, and at all times herein were acting in such
capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

(4) At least thirty (30) days have elapsed since the service of the claim prior to the
commencement of this action and adjustment of payment thereof has been neglected or refused,
and this action has been commenced within one year and ninety (90) days after the happening of
the event upon which the claims are based.

(5) The Plaintiff has complied with the request of the municipal Defendant's for an
oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public
Authorities Law and as such hearing was conducted on April 25, 2018.

(6) Upon information and belief, at all times mentioned, Defendants **THE CITY OF
NEW YORK, NEW YORK CITY POLICE DEPARTMENT, SRGT. LUISA FELIZ**

SHIELD NO.: 1198 and POLICE OFFICER JAY LARA, SHIELD NO.: 15656, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

(7) On or about August 2, 2017, at or near the 5 train at West Farms Sq. E Tremont Ave Station, County of Bronx, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **MICHAEL TAYLOR**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

(8) Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.

(9) That on or about August 2, 2017, at approximately 11:00 p.m., while the Plaintiff was lawfully at the above mentioned location, when **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, SRGT. LUISA FELIZ SHIELD NO.: 1198 and POLICE OFFICER JAY LARA, SHIELD NO.: 15656**, members of the **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT** without just cause or provocation arrested and detained Plaintiff **MICHAEL TAYLOR**.

(10) That the plaintiff was wholly innocent, and was forced by the defendants, their agents, servants and/or employees, to submit to lengthy Court proceedings.

(11) That on or about the 2nd day of August 2017, and prior and subsequent thereto, the defendant, **SGT. LUISA FELIZ SHIELD NO.: 1198 and POLICE OFFICER JAY LARA, SHIELD NO.: 15656**, falsely and maliciously, without probable cause or provocation charged the plaintiff with various crimes, including felonies, misdemeanors and violations.

(12) That the said prosecution, criminal charges and hearings were instituted and procured by the defendant, their agents, servants and/or employees in this action unlawfully, maliciously and without reasonable or probable cause, with actual malice and was terminated in plaintiff's favor.

(13) That the aforesaid occurrence, false arrest, imprisonment of the plaintiff and malicious prosecution, was caused solely and wholly by reason of the negligence of the defendant's, their agents, servants and/or employees without any negligence on the part of the plaintiff herein.

(14) That by reason of the aforesaid, the plaintiff was injured in mind, still suffers and, upon information and belief will continue to suffer, great indignities, humiliation and ridicule; was greatly injured to her credit and circumstances; was prevented from performing and transacting his necessary affairs; and was incapacitated from his usual occupations. Upon information and belief, the plaintiff has expended diverse sums of monies, in an effort to extricate herself from the imprisonment, indignities and humiliation foisted upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and, upon information and belief, will expend further sums in that direction.

(15) That by reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

(16) Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "5" with full force and effect as though set forth at length herein.

(17) On or about August 2, 2017, at or near the 5 train at West Farms Sq. E Tremont Ave Station, County of Bronx, State of New York the Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, SGT. LUISA FELIZ SHIELD NO.: 1198 and POLICE OFFICER JAY LARA, SHIELD NO.: 15656**, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of the Bronx and there charged him with the crimes on Docket No.: B17639075. The Plaintiff was thereafter held in custody over the course of approximately two (2) days until his case was dismissed on August 7, 2017. The Defendants intentionally confined the Plaintiff without his consent and the confinement was

not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

(18) Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "17" with full force and effect as though set forth at length herein.

(19) On or about August 2, 2017, at or near the 5 train at West Farms Sq. E. Tremont Ave Station, County of Bronx, State of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the 46th Precinct. The Plaintiff was thereafter held in custody over the course of approximately two (2) days until his case was dismissed on August 7, 2017. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FIFTH CAUSE OF ACTION

(20) Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "19" with full force and effect as though set forth at length herein.

(21) Upon information and belief, on or about August 2, 2017, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, SRGT. LUISA FELIZ SHIELD NO.: 1198 and POLICE OFFICER JAY LARA, SHIELD NO.: 15656**, deliberately and maliciously prosecuted Plaintiff **MICHAEL TAYLOR**, an innocent male without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

(22) The Defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be

inferred.

(23) The commencement of these criminal proceedings under Docket No. B17639075 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

(24) As a result of the malicious prosecution, Plaintiff was deprived of him liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty against these unjust charges.

AS AND FOR A SIXTH CAUSE OF ACTION

(This Cause of Action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

(25) Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "24" with full force and effect as though set forth at length herein.

(26) **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, SRGT. LUISA FELIZ SHIELD NO.: 1198 and POLICE OFFICER JAY LARA, SHIELD NO.: 15656**, was at all times relevant, duly appointed and acting officers of the City of New York Police Department.

(27) At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

(28) Plaintiff **MICHAEL TAYLOR** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

(29) The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.

(30) On or about August 2, 2017, the Defendants, armed police, while effectuating the seizure of Plaintiff **MICHAEL TAYLOR**, did search, seize, assault and commit a battery

and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned and maliciously prosecuted without the Defendants possessing probable cause to do so.

(31) The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from the use of excessive force during the arrest process;
- g. Freedom from unlawful imprisonment.

(32) The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

(33) The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SEVENTH CAUSE OF ACTION

(This Cause of Action applies to the City of New York and the officer sued in their official capacity should be characterized as a "Monell" claim.)

(34) Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "32" with full force and effect as though set forth at length herein.

(35) Defendant **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, SRGT. LUISA FELIZ SHIELD NO.: 1198 and POLICE OFFICER JAY LARA, SHIELD NO.: 15656**, have grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police

officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

(36) **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff(or similarly situated individuals) or without the possession of a court authorized arrest and/or search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should be used where a criminal defendant is not resisting arrest.

(37) **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department to actively enforce the law, while ensuring that the U.S. Constitution is not violated, in that police officers, including those named are not trained of the following:

1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
2. Excessive force cannot be used against an individual who does not physically resist arrest.
3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
4. An individual such as the Plaintiff herein cannot be subjected to a strip search with cavity inspection unless the police possess legal cause and/or have a reasonable suspicion and/or probable cause that the plaintiff has secreted contraband in or on his person.

(38) The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and

denied his prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

(39) Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officers Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgement against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bronx, New York
September 28, 2018

Yours, etc.,


MICHAEL BRAVERMAN
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff(s)
MICHAEL TAYLOR
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No. 9161

ATTORNEY'S VERIFICATION BY AFFIRMATION

MICHAEL BRAVERMAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at GETZ & BRAVERMAN, P.C., attorneys of record for Plaintiff(s), Michael Taylor. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make the foregoing affirmation because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: Bronx, New York
September 28, 2018



MICHAEL BRAVERMAN

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MICHAEL TAYLOR,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, SGT. LUISA
FELIZ SHIELD NO.: 1198 and POLICE OFFICER JAY LARA, TAX ID NO.: 15656,

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

GETZ & BRAVERMAN, P.C.
Attorneys for MICHAEL TAYLOR,
172 East 161st Street
Bronx, New York 10451
(718) 993-3000

TO: **THE CITY OF NEW YORK**
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, New York 10007

SRGT., SGT. LUISA FELIZ SHIELD NO.: 1198
1 Police Plaza, 4th Floor
New York, NY 10038

POLICE OFFICER JAY LARA, TAX ID NO.: 15656
1 Police Plaza, 4th Floor
New York, NY 10038